

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.: 158006/2021
ANTHONY GRIFFIN,

Plaintiff,

AMENDED SUMMONS

-against-

THE CITY OF NEW YORK,
POLICE OFFICER WALTER MANCILLA, SERGEANT
FRANCISCO GARCIA, POLICE OFFICER MARC HUMMEL,
POLICE OFFICER SEAN SLOMAN, AND JOHN DOES 1AND
2,

**PLAINTIFF DESIGNATES
NEW YORK COUNTY AS
THE PLACE OF TRIAL**

The basis of venue is location of
the incident.

Defendants.

-----X

To the above-named Defendant:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Brooklyn, New York
August 26, 2022

JESSICA MASSIMI

By: *Jessica Massimi*
99 Wall Street, Suite 1264
New York, NY 10005
646-241-9800
Jessica.Massimi@gmail.com

To: THE CITY OF NEW YORK
c/o The New York City Law Department
100 Church Street
NY, NY 10007

POLICE OFFICER WALTER MANCILLA
28TH NYPD PRECINCT
2271-89 FREDERICK DOUGLAS BOULEVARD
NEW YORK, NY 10027

SERGEANT FRANCISCO GARCIA
28TH NYPD PRECINCT
2271-89 FREDERICK DOUGLAS BOULEVARD
NEW YORK, NY 10027

POLICE OFFICER MARC HUMMEL
28TH NYPD PRECINCT
2271-89 FREDERICK DOUGLAS BOULEVARD
NEW YORK, NY 10027

POLICE OFFICER SEAN SLOMAN
28TH NYPD PRECINCT
2271-89 FREDERICK DOUGLAS BOULEVARD
NEW YORK, NY 10027

JOHN DOES 1-2

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.: 158006/2021
ANTHONY GRIFFIN,

Plaintiff,

**FIRST AMENDED
VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK,
POLICE OFFICER WALTER MANCILLA, SERGEANT
FRANCISCO GARCIA, POLICE OFFICER MARC HUMMEL,
POLICE OFFICER SEAN SLOMAN, AND JOHN DOES 1 AND
2,

JURY TRIAL DEMANDED

Defendants.

-----X

Plaintiff, ANTHONY GRIFFIN, by his attorney, JESSICA MASSIMI, hereby complains
of the Defendants, upon information and belief, as follows:

PARTIES

1. At the time of the civil rights violations described herein, Plaintiff, ANTHONY GRIFFIN, was an adult resident of New York County, City and State of New York.
2. At all relevant times mentioned herein, Defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.
3. At all times hereinafter mentioned, Defendant, POLICE OFFICER WALTER MANCILLA (SHIELD NO. 26247), was an adult male employed by the City of New York as a member of the NYPD assigned to the 28th Precinct. Defendant Mancilla is currently assigned to the 28th Precinct. Defendant Mancilla is sued herein in his official and individual capacities.
4. At all times hereinafter mentioned, Defendant, SERGEANT FRANCISCO GARCIA (SHIELD NO. 04765), was an adult male employed by the City of New York as a member of

the NYPD assigned to the 28th Precinct. Defendant Garcia is currently assigned to the 28th Precinct. Defendant GARCIA is sued herein in his official and individual capacities.

5. At all times hereinafter mentioned, Defendant, POLICE OFFICER MARC HUMMEL (SHIELD NO. 23029), was an adult male employed by the City of New York as a member of the NYPD assigned to the 28th Precinct. Defendant Hummel is currently assigned to the 28th Precinct. Defendant Hummel is sued herein in his official and individual capacities.
6. At all times hereinafter mentioned, Defendant, POLICE OFFICER SEAN SLOMAN (SHIELD NO. 16483), was an adult male employed by the City of New York as a member of the NYPD assigned to the 28th Precinct. Defendant Sloman is currently assigned to the 28th Precinct. Defendant Sloman is sued herein in his official and individual capacities.
7. At all times hereinafter mentioned, Defendants, JOHN DOES 1-2, were adult males employed by the City of New York as members of the NYPD assigned to the 28th Precinct whose names are currently unknown to the Plaintiff. Defendant JOHN DOES 1-2 are sued herein in their official and individual capacities.
8. Defendants Mancilla, Garcia, Hummel, Sloman, and John Does 1-2, are collectively referred to as the “Individual Defendants.”
9. Contemporaneous with the filing of his Complaint, Plaintiff ifiled an application for permission to file a late notice of claim. Plaintiff made this application within 1 year and 90 days of the subject incident.
10. That the within action was initiated within one year and ninety days of the accrual of Plaintiff’s claims pursuant to New York State Law.

RELEVANT FACTS

11. On May 30, 2020 at about 11:30 p.m., Plaintiff was lawfully present on 114th Street between 7th and 8th Avenues, in the County, City, and State of New York.
12. Other individuals were also present at this location.
13. Upon information and belief, people, including Plaintiff, were gathered at this location in observance of the recent passing of a friend and family member of people of that community.
14. At this time, without any warning or justification, Defendants Mancilla, Garcia, Hummel, Sloman, and John Does 1-2 arrived at this location with several other members of the NYPD, and blocked off both ends of 114th Street at 7th and 8th Avenues. This tactic NYPD tactic is commonly referred to as “kettling.”
15. The Defendants and members of the NYPD perceived this group of civilians, including Plaintiff, as engaged in a protest. The NYPD and Defendants said to Plaintiff and other individuals at the scene “you are protesting where you live.”
16. While false, this accusation reflects the NYPD’s perception and belief at the individuals at this location, including Plaintiff, were engaged in protected First Amendment activity.
17. Though the group was not engaged in a protest, the Defendants and NYPD engaged in a number of tactics at this location, including kettling, which have been condemned as part of the larger criticism of the NYPD’s response to the 2020 protests in response to the murder of George Floyd.
18. In the days and weeks following Floyd’s killing, the NYPD engaged in activities that violated the constitutional rights of individuals who were protesting police misconduct, including, *inter alia*, corralling protestors into spaces where they could not escape, beating protestors with batons and fists, throwing protestors to the ground, using pepper spray indiscriminately, and

ultimately arresting many of the protestors without lawful justification and without fair warning. Protestors were physically restrained with flex-cuffs in such a manner that caused them unnecessary pain and suffering and, in some cases, possible serious and long-term nerve damage. They were also subjected to lengthy and unnecessary arrest processing that put them in dangerously close quarters, all at the height of the global COVID-19 pandemic.

19. The unlawful policies and practices used by Defendants against protestors included a crowd-control tactic known as “kettling” to corral and detain individuals who were engaged in peaceful protest. Defendants used kettling and similar tactics in order to impede constitutionally protected First Amendment activities, to conduct mass arrests without probable cause, and to deter those arrested and beaten, and others, from exercising their First Amendment rights in the future.
20. In addition, NYPD officers also targeted and arrested legal observers, medics, and other workers performing essential services without probable cause.
21. By contrast, these same Defendants have responded to other protests (including, in particular, “Blue Lives Matter” and other pro-police protests) without using the same tactics employed against those who protested police conduct during the racial justice protests of 2020.
22. The police actions in this case were part of overlapping policies and practices of the City of New York and the NYPD which were well known to Defendants New York City Mayor Bill de Blasio, New York City Police Commissioner Dermot Shea, and other City policymakers. These overlapping policies and practices include, *inter alia*, the use of excessive force, false arrests, and excessive and unreasonable detention at certain demonstrations—particularly those that focus on misconduct by the NYPD—but not others. These overlapping policies and practices have existed for years and have often resulted in litigation.

23. In this instance, as noted above, the Defendants and other members of the NYPD kettled the people on 114th Street between 7th and 8th Avenues, and then aggressively began telling them to leave that location. Defendants and other members of the NYPD, after kettling people at this location, also began assaulting people at this location with no justification or excuse.
24. In so doing, the Defendants and other members of the NYPD prevented people from complying with their unlawful orders, thereby laying the pretextual groundwork for arrests, including Plaintiffs.
25. At this time, either Defendant Mancilla or Garcia approached Plaintiff after the NYPD's kettle was in place, and yelled at Plaintiff to leave.
26. Plaintiff lives on this block and there was no justification or legal basis for the Defendants to tell Plaintiff to leave that location.
27. In any event, despite the fact that no lawful order to disperse was given, Plaintiff began to leave by walking along 114th Street toward 8th Avenue, away from 7th Avenue.
28. As Plaintiff did this, he continued to observe several members of the NYPD accost and assault several innocent people at that location.
29. Nonetheless, Plaintiff continued walking towards 8th Avenue, while another person walking alongside him continued to film the police.
30. Plaintiff intended to turn right at 8th Avenue and head north. However, as Plaintiff continued making his way toward 114th Street and 8th Avenue in effort to leave that location as the Defendants and NYPD instructed, either Defendant Mancilla or Defendant Garcia continued walking toward Plaintiff, telling him, in sum and substance to "get the fuck out of here."
31. This individual who is believed to be either Defendant Mancilla or Defendant Garcia then blocked Plaintiff's path preventing him from turning right at 8th Avenue and heading north.

32. Thus, in an attempt to continue complying with NYPD instructions to “get the fuck out of here,” Plaintiff turned left at 8th Avenue and began walking south.
33. As Plaintiff was crossing 114th Street on 8th Avenue, the Defendants approached Plaintiff and at least one of Defendants Mancilla, Garcia, Hummel, Sloman, and John Does 1-2 struck Plaintiff on his head with their baton causing Plaintiff to lose consciousness and fall to the street.
34. When Plaintiff regained consciousness, the Defendants were assaulting and beating Plaintiff with their batons and fists causing Plaintiff to sustain several severe and permanent personal injuries including but not limited to loss of consciousness and pain, bruising and contusions to his torso, body, head, and limbs.
35. Plaintiff was not engaged in any violent or threatening activity, and there was no reason for the Defendants to use any level of force on Plaintiff much less the force they actually employed.
36. The Defendants then placed Plaintiff in excessively tight handcuffs without any probable cause or justification, since Plaintiff was not involved in any illegal or suspicious activity.
37. The Defendants then transported Plaintiff to the stationhouse of a local area precinct where he remained for several hours before the Defendants transported him to New York County Central Booking where he was held for an additional number of hours before he was arraigned on a criminal complaint containing false allegations sworn to by Defendants Mancilla and Garcia.
38. Sergeant Garcia and Officer Mancilla swore out a false criminal complaint against Plaintiff containing false allegations which Sergeant Garcia and Officer Mancilla knew to be false when they made them.

39. Defendants forwarded these false allegations to the New County District Attorney's Office ("NYCDA") despite the false nature of the allegations.
40. Plaintiff was eventually released from custody and forced to return to Court pursuant to the false allegations made by Defendants before the charges against Plaintiff were dismissed on grounds consistent with his innocence.
41. On or about June 18, 2020, Plaintiff's criminal charges stemming from this arrest were dismissed in the interest and furtherance of justice, and in his favor on grounds consistent with Plaintiff's innocence.
42. Plaintiff was not involved in any activity which would have justified his arrest and there in fact existed no probable cause to justify Plaintiff's arrest.
43. Plaintiff was not engaged in any activity which would have justified the use of force against him.
44. Plaintiff remained in the custody of the Defendants for several hours.
45. At no time did Defendants have a legal basis to stop or arrest Plaintiff, nor was it reasonable for the Defendants to believe that such a basis existed.
46. At no time did Defendants have probable cause to seize, detain or arrest the Plaintiff nor was it reasonable for the Defendants to believe that such cause existed.
47. Any no time was there any justification for the use of force against Plaintiff, much less the level of force applied by the Defendants.
48. At no time did any of the defendants, or any other member of the NYPD, take any steps to intervene in, prevent, or otherwise limit the heretofore conduct engaged in by their fellow officers.

49. That at all times relevant herein, the Defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

Pursuant to 42 U.S.C. § 1983 for Individual Defendants' Violations of Plaintiff's Rights Under the Fourth Amendment to be Free from False Arrest

50. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

51. The Individual Defendants willfully and intentionally seized, searched, detained, and arrested Plaintiff, and caused him to be imprisoned, without probable cause, and without a reasonable basis to believe such cause existed.

52. Plaintiff had not been engaged in any criminal conduct, nor was he engaged in any conduct that could reasonably be viewed as criminal nor a basis to justify his arrest.

53. Despite the absence of sufficient legal cause, Plaintiff was arrested and jailed.

54. By so doing, the Individual Defendants subjected Plaintiff to false arrest and imprisonment, and thereby violated and aided and abetted in the violation of Plaintiff's rights under the Fourth Amendment of the United States Constitution.

55. By reason thereof, the Individual Defendants have violated 42 U.S.C §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

SECOND CAUSE OF ACTION***Pursuant to 42 U.S.C. § 1983 for Individual Defendants' Violations of Plaintiff's Rights Under the Fourth Amendment to be Free from Denial of Fair Trial***

56. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

57. The Individual Defendants willfully and intentionally fabricated evidence by falsely memorializing claims to have witnessed Plaintiff engaging in criminal or unlawful activity, and then forwarded these materially false claims to the New York County District Attorney's Office ("NYCDA") in order to justify the arrest of Plaintiff, and to justify, bring about and cause Plaintiff to be deprived of their liberty and to be criminally prosecuted.

58. By so doing, the Individual Defendants subjected the Plaintiff to denial of a fair trial and violation of his right to due process by fabricating evidence and otherwise providing prosecutors with a materially false and misleading version of events, and thereby violated Plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

59. By reason thereof, the Individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

THIRD CAUSE OF ACTION***Pursuant to 42 U.S.C. § 1983 for Individual Defendants' Violations of Plaintiff's Rights Under the Fourth Amendment to be Free from Malicious Prosecution***

60. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

61. The Individual Defendants willfully and intentionally caused Plaintiff to be subjected to criminal prosecution by falsely memorializing claims to have witnessed Plaintiff engaging in criminal or unlawful activity, and then forwarded these materially false claims to the NYCDA, which resulted in the NYCDA presenting criminal charges against Plaintiff without probable cause for said prosecution.

62. The criminal prosecution caused Plaintiff to suffer a deprivation of liberty before Plaintiff's criminal charges were terminated favorably.

63. By so doing, the Individual Defendants caused Plaintiff to be maliciously prosecuted, and thereby violated Plaintiff's rights under the Fourth, Sixth, and Fourteenth Amendments of the United States Constitution.

64. By reason thereof, the Individual Defendants have violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

FOURTH CAUSE OF ACTION***Pursuant to 42 U.S.C. § 1983 for Individual Defendants' Violations of Plaintiff's Rights Under the Fourth Amendment to be Free from Excessive Force***

65. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

66. As a result of the Defendants' conduct, Plaintiff was subjected to excessive force.

67. By reason thereof, the Individual Defendants violated 42 U.S.C. §1983 and caused Plaintiff to suffer the deprivation of his liberty, loss of his constitutional rights, physical injuries, and mental anguish.

FIFTH CAUSE OF ACTION**First Amendment*****Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution***

68. Plaintiff incorporates by reference the allegations set forth in all preceding and following paragraphs as if fully set forth herein.

69. Defendants (a) imposed restrictions on such protected speech and/or conduct that violated Plaintiffs' First Amendment rights, including, but not limited to, in falsely arresting Plaintiff, in subjecting Plaintiff to excessive force, in selectively enforcing laws and regulations against Plaintiff, in subjecting Plaintiff to Defendants' Protest Arrest Processing Policies, and in otherwise violating Plaintiff's rights and engaging in the acts and omissions complained of herein.

70. In addition to being retaliatory, the restrictions Plaintiff complains of herein, which Defendants imposed on Plaintiff's First Amendment rights to participate in, observe, and/or stand nearby

speech, conduct, association, and/or other expressive activities protected by the First

Amendment on the streets, were themselves regulations on Plaintiff's protected conduct that:

- a. Were viewpoint discriminatory and/or otherwise not content-neutral, and were not necessary, and precisely tailored, to serve compelling governmental interests, and/or were not the least restrictive means readily available to serve those interests; or, alternately,
- b. Were content-neutral, but lacked narrow tailoring to serve a significant governmental interest, in that they burdened substantially more protected speech and/or conduct than necessary to serve those interests, and/or failed to provide ample alternatives for Plaintiffs' protected expression, including in that Plaintiff's abilities to communicate effectively were threatened; and/or
- c. Afforded Defendants unbridled or otherwise inappropriately limited discretion to limit or deny Plaintiff's abilities to engage in protected conduct (also raising constitutionally significant Due Process-based vagueness and/or overbreadth concerns); and/or
- d. Amounted to the imposition of strict liability on Plaintiff for engaging in protected speech and/or expression.

71. As a result of Defendants' acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering, psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

72. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SIXTH CAUSE OF ACTION**First Amendment Retaliation*****Pursuant to 42 U.S.C. § 1983 for Defendants' Violations of Plaintiff's Rights Under the First and Fourteenth Amendments to the United States Constitution***

73. Defendants retaliated against Plaintiff for engaging in speech and/or conduct protected by the First Amendment.

74. Defendants engaged in the acts and omissions complained of herein in retaliation for Plaintiff's protected speech and/or conduct.

75. Defendants engaged in the acts and omissions complained of herein in order to prevent Plaintiff from continuing to engage in such protected speech and/or conduct.

76. Defendants engaged in the acts and omissions complained of herein in order to prevent and/or discourage Plaintiff from engaging in similar protected conduct in the future.

77. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who implemented them subjected Plaintiff to violations of his First Amendment rights.

78. Upon information and belief, Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment-based claims—including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline—with malice.

79. Upon information and belief, Defendants engaged in the acts and omissions complained of herein with respect to Plaintiff's First Amendment retaliation claims—including the related municipal liability claims involving the adoption of policies, practices, and/or customs and/or related failures to train, supervise, and/or discipline—in response to the perceived viewpoint and/or message expressed by Plaintiff.

80. Upon information and belief, Defendants did not subject other protesters expressing “Blue Lives Matter” or other, similar, pro-police messages who were similarly situated to Plaintiff in terms of his conduct and/or its potential public ramifications to the conduct, policies, practices, and/or customs complained of herein.
81. Additionally, some of the offenses charged against Plaintiff, which Defendants might argue provided probable cause for Plaintiff’s arrest, were offenses that Defendants typically exercise their discretion not to enforce, or not to make arrests in connection with.
82. Plaintiff suffered actual chill, including in that Plaintiff was prevented and/or deterred from or impeded in participating in protected conduct on the date of and after the incident; and/or suffered adverse effects on his protected speech and/or conduct; and/or otherwise suffered some concrete harm(s).
83. Additionally, in many cases, Defendants apparently permitted, acquiesced in, and/or facilitated the speech and/or other expressive conduct in which Plaintiff was engaging, before suddenly using force and/or making arrests, without first having given reasonable notice that such force and/or arrest activity would result if Plaintiff did not conduct themselves differently and/or disperse, as well as a meaningful opportunity to comply.
84. Additionally, as discussed elsewhere herein, Defendant City designed and/or implemented policies and practices pursuant to which those Defendants who ordered, effected, and otherwise participated in arresting and detaining Plaintiff subjected Plaintiff to the violations of his First Amendment rights described elsewhere herein.
85. As a result of Defendants’ acts and omissions, Defendants deprived Plaintiff of his federal, state, and/or other legal rights; caused Plaintiff bodily injury, pain, suffering,

psychological and/or emotional injury, and/or humiliation; caused Plaintiff to expend costs and expenses; and/or otherwise damaged and injured Plaintiff.

86. The unlawful conduct of the Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed against them.

SEVENTH CAUSE OF ACTION
(Section 1983 *Monell* Claim Against the Municipal Defendant)

87. Plaintiff hereby realleges and incorporates by reference all of the preceding paragraphs as though they were fully set forth herein.

88. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

89. Defendant City of New York had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, abuse of arrest powers, fabrication of evidence, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD.

90. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the Plaintiff herein.

91. Defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy,

practice, and custom of utilizing illegal and impermissible searches, arrests, and detentions, and the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the Plaintiff's arrest.

92. The acts complained of herein are a direct and proximate result of the failure of the City of New York and the NYPD properly to select, train, supervise, investigate, promote and discipline police and correction officers and supervisory officers.

93. The failure of the City of New York and the NYPD properly to select, train, supervise, investigate, promote and discipline police and correction officers and supervisory officers constitutes gross and deliberate indifference to unconstitutional conduct by those officers.

94. The official policies, practices and customs of the City of New York and the NYPD alleged herein violated Plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth and Fourteenth Amendments to the Constitution of the United States.

95. All of the acts and omissions by the Individual Defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures, and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD.

96. Therefore the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of the Plaintiff's rights in particular.

97. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused Plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of his constitutional rights.

EIGHTH CAUSE OF ACTION

Civil Rights Violations Pursuant to New York State Law

98. Plaintiff repeats the allegations contained in each of the foregoing paragraphs as though stated fully herein.

99. Plaintiff was subjected to false arrest, excessive force, malicious prosecution, first amendment violations, denial of due process and fair trial, through the defendants' use of fabricated evidence and the making of false statements.

100. At no time did Defendants have any legal basis for arresting Plaintiff, subjecting him to prosecution, or commencing criminal process against them, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable, or otherwise appropriate.

101. The Defendants are therefore liable under New York law to Plaintiff for false arrest, malicious prosecution, denial of due process and fair trial, first amendment violations, and excessive force.

102. By reason thereof, Defendants have caused Plaintiff to suffer emotional and physical injuries, mental anguish, the loss of his constitutional rights, and unlawful incarceration.

DEMAND FOR A JURY TRIAL

Pursuant to Fed. R. Civ. P. 38, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the Plaintiff demands judgment against the Individual Defendants and the City of New York as follows:

- i. actual and punitive damages against the Individual Defendants in an amount to be determined at trial;
- ii. actual damages in an amount to be determined at trial against the City of New York;
- iii. statutory attorney's fees pursuant to, inter alia, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and
- iv. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
August 26, 2022

JESSICA MASSIMI

By: *Jessica Massimi*
99 Wall Street, Suite 1264
New York, NY 10005
646-241-9800
Jessica.Massimi@gmail.com

VERIFICATION

JESSICA MASSIMI, an attorney duly admitted to practice law before the courts of this state, and attorney for the Plaintiff, Anthony Griffin, affirms the following under penalty of perjury:

I have read the **AMENDED SUMMONS AND VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, files, and other pertinent information within my knowledge and possession.

This verification is made by me and not Plaintiff because Plaintiff is not presently in the county where I maintain my office.

Dated: New York, New York
August 26, 2022

A handwritten signature in cursive script that reads "Jessica Massimi".

JESSICA MASSIMI